

TENTATIVE RULING

Veronica Retamoza
v.
Ballesteros Packing, LLC
24CV000276

Plaintiff's Motion for Final Approval of Class and PAGA Settlement

Hearing Date: July 10, 2026 (continued from April 3, 2026)

Plaintiff Veronica Retamoza's motion for final approval of the class action settlement and the Private Attorneys General Act claims is **GRANTED**. The supplemental documents address the issues identified by the Court's previous order. Counsel signed his declaration, and the settlement administrator provided adequate evidence to demonstrate that the Class Notice was amended and sent to class members as instructed. The Court earlier decreased the class representative enhancement to \$5,000 and determined that the settlement is fair and reasonable based on the factors outlined in *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802, and *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.

The final accounting of the settlement fund distribution is scheduled for **February 23, 2027**, at 10:00 a.m. in Department 14. The Court will finalize and sign the Amended Proposed Order and Judgment, lodged on June 23, 2026.

As a result of this ruling, the Further Case Management Conference scheduled for July 10, 2026, is **CONTINUED** to February 23, 2027, to align with the final accounting hearing.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.